

25CHCV00127 25CHCV00127

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-05

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Case Number: 25CHCV00127 Hearing Date: August 5, 2026 Dept: F47

Dept. F47

Date: 8/5/26

TRIAL DATE: 5/24/27

Case #25CHCV00127

2 MOTIONS TO

COMPEL DISCOVERY RESPONSES

Motions filed on 2/27/26.

MOVING PARTY: Defendant Nancy Rodriguez

RESPONDING PARTY: Plaintiff Jose Manuel Hernandez Peralta

NOTICE: ok

RELIEF REQUESTED:

(1) An order compelling Plaintiff Jose Manuel Hernandez Peralta to serve verified answers, without objection, to Form Interrogatories, Set 1, served on Peralta on 9/12/25 within 20 days of the hearing on this motion. Additionally, Defendant requests an order imposing sanctions in the amount of \$615.00 against Peralta; and

(2) An order compelling Plaintiff Jose Manuel Hernandez Peralta to serve verified answers, without objection, to Demand for Production

of Documents, Set 1, served on Peralta on 9/12/25 within 20 days of the hearing on this motion. Additionally, Defendant requests an order imposing sanctions in the amount of \$615.00 against Peralta.

RULING: The hearing on the motions will be continued.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of a motor vehicle accident that occurred on 7/3/23 between Plaintiffs Martin Martinez Chavez (Chavez) and Jose Manuel Hernandez Peralta (Peralta) (collectively, Plaintiffs) and Defendant Nancy Rodriguez (Defendant). On 1/14/25, Plaintiffs filed this action against Defendant and others who have since been dismissed.

On 9/12/25, Defendant served Plaintiffs with Form Interrogatories, Set 1, and Demands for Production, Set 1. (Marder Decls., Exs.A). Despite granting an extension to respond to the discovery, Peralta failed to serve responses. (Id. Exs.B-D). On 2/16/26, Plaintiffs' counsel notified defense counsel that they do not represent Peralta, despite the fact that the complaint indicates Plaintiffs' counsel does represent Peralta and no substitution of attorney has been filed. (Id., Exs.E).

On 2/27/26, Defendant filed and served the instant motions seeking:

(1) An order compelling Plaintiff Jose Manuel Hernandez Peralta to serve verified answers, without objection, to Form Interrogatories, Set 1, served on Peralta on 9/12/25 within 20 days of the hearing on this motion. Additionally, Defendant requests an order imposing sanctions in the amount of \$615.00 against Peralta; and

(2) An order compelling Plaintiff Jose Manuel Hernandez Peralta to serve verified answers, without objection, to Demand for Production of Documents, Set 1, served on Peralta on 9/12/25 within 20 days of the hearing on this motion. Additionally, Defendant requests an order imposing sanctions in the amount of \$615.00 against Peralta.

On 7/23/26, Plaintiffs' counsel filed and served an opposition. A reply to the opposition has not been filed.

ANALYSIS

The opposition requests a continuance of the hearing on the instant motions until after Plaintiffs' counsel's motion to be relieved as counsel for Peralta is heard on 9/30/26.

Plaintiffs' counsel claims that there has been a breakdown in the attorney-client relationship such that counsel has been unable to obtain the information to prepare and verify Peralta's discovery responses. (See Khachatourians Decl.).

Although defense counsel purportedly refused Plaintiffs' counsel's request to continue the hearing on these motions until after the hearing on the motion to be relieved, no reply to the opposition has been filed.

CONCLUSION

The hearing on the motions will be continued approximately 2 weeks after the 9/30/26 hearing on Plaintiffs' counsel's motion to be relieved as counsel for Plaintiff Jose Manuel Hernandez Peralta.

In violation of CRC 3.1110(f)(4), Plaintiffs' counsel has failed to electronically bookmark the exhibits attached to the opposition. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.